VERIFYING THE AUTOMATIC WITHDRAWAL, DISMISSAL AND SEALING

Prepared for: Erik Haldor Bjornstad

THE RULE. N.D.R.Crim.P. 32.1 makes it a mandatory term of every order deferring imposition of sentence that, sixty-one days after probation expires or terminates, the guilty plea is withdrawn or the verdict of guilt set aside, the case is dismissed and the file is sealed. Since the amendment effective 1 March 2019 the rule applies in all cases, not only misdemeanors and infractions. On this unit NOTHING IS FILED, because the court acts under a term of its own order.

VERIFY, IN ORDER, FROM THE RECORD - nothing can be said about your status until you hold the papers:

STEP ONE. Obtain the ORDER DEFERRING IMPOSITION OF SENTENCE from the clerk of court of the sentencing court. Its date decides which version of Rule 32.1 applies: before 1 March 2019 the rule reached only misdemeanor and infraction cases, so a pre-2019 felony deferral may never have carried the term at all - that is a recorded open question, and it decides which unit of this packet is yours.
STEP TWO. Obtain the PROBATION DISCHARGE or final discharge from supervision, from the clerk of court or from the Department of Corrections and Rehabilitation Parole and Probation. It fixes the date the sixty-one days run from.
STEP THREE. Confirm from the clerk's file that NO PETITION FOR REVOCATION was filed within sixty days of probation ending, and that NO BENCH WARRANT is outstanding in the case. Either one keeps the automatic term from operating on schedule.
STEP FOUR. Ask the clerk for the FINAL ORDER withdrawing the plea, setting aside the verdict and dismissing the case. Until you have it, nothing can be said about whether the automatic term operated.

WHAT THE ANSWERS MEAN:
- You hold the final order: the term operated. Nothing is filed. Read the legal-effect page of this packet before assuming what the seal does.
- No final order, probation ended more than sixty-one days ago, no revocation petition and no bench warrant: the automatic term may not have been carried out, and the motion unit of this packet is the fallback. Ask the clerk for an explanation first.
- No final order and no explanation from the clerk: stop and get help before filing anything.

MONEY. No fee is identified for either unit in the family's own record; nothing here states one.

MOTION UNDER N.D.C.C. SEC. 12.1-32-07.1 FOR WITHDRAWAL OF PLEA, DISMISSAL AND SEALING

FILE THIS MOTION ONLY IF the automatic sixty-one-day term of N.D.R.Crim.P. 32.1 did not operate in your case - because the deferral order predates the rule's regime for your offence level, or because the clerk's file shows the term was not carried out. If the final order withdrawing the plea and dismissing the case already exists, do not file this; there is nothing to ask for.

IN THE DISTRICT COURT OF ..... COUNTY, NORTH DAKOTA
(the county of the sentencing court that deferred imposition)

STATE OF NORTH DAKOTA,
Plaintiff,
v.
Erik Haldor Bjornstad,
Defendant.

Case No. .....
(the existing criminal case number, from the deferral order)

MOTION UNDER N.D.C.C. Sec. 12.1-32-07.1 FOR WITHDRAWAL OF PLEA OR SETTING ASIDE OF VERDICT, DISMISSAL, AND SEALING

The defendant, Erik Haldor Bjornstad, moves the Court in the existing criminal case, under N.D.C.C. Sec. 12.1-32-07.1, and states:

FIRST. The Court entered an order deferring imposition of sentence in this case on the following date, shown by the deferral order:
.....

SECOND. The defendant's probation expired or terminated on the following date, shown by the discharge record:
.....

THIRD. More than sixty-one days have passed since probation expired or terminated; the clerk's file shows no petition for revocation filed within sixty days of that date and no outstanding bench warrant in this case; and the file does not show that the withdrawal, dismissal and sealing which N.D.R.Crim.P. 32.1 makes a mandatory term of a deferral order have been carried out.

FOURTH. The offence was of the following level - felony, misdemeanor or infraction - as the deferral order states it:
.....

FIFTH. Mark the following ONLY where the offence was a felony and you ask for the reduction; it is your own application and nothing is marked for you:

[ ] The defendant applies, under N.D.C.C. Sec. 12.1-32-07.1, for reduction of the felony to a misdemeanor before dismissal.

THEREFORE the defendant asks the Court to allow withdrawal of the plea of guilty or set aside the verdict of guilt, to dismiss the information or indictment, to seal the file as provided for a deferred imposition of sentence, and - where the reduction is applied for above - to reduce the felony to a misdemeanor before dismissal.

DATE ..... SIGNATURE OF DEFENDANT .....

(The defendant signs and dates this motion personally. Nothing on this page is signed or dated for the defendant. No notarization is required by the record.)

PRINTED NAME: Erik Haldor Bjornstad
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No held source states a service duty for this motion. Ask the clerk of court of the sentencing court whether the state's attorney must receive a copy.

WHAT THIS SEAL IS, AND WHAT IT IS NOT

Prepared for: Erik Haldor Bjornstad

READ THIS PAGE WHETHER OR NOT ANYTHING IS FILED. The seal that follows a deferred imposition of sentence is narrower than people expect, and expecting more from it is a recorded reason to stop and get advice.

WHAT THE SEAL IS. Sealing here is the restricted-access regime of N.D.C.C. Sec. 12.1-32-07.2(2): the records and papers may be examined only by the persons that subsection enumerates, and by others upon written order of a judge. It restricts access; it is not a disclosure prohibition, and it is narrower than Chapter 12-60.1 sealing.

WHAT THE SEAL IS NOT:
- IT IS NOT A CLEAN SLATE IN A LATER PROSECUTION. Under N.D.C.C. Sec. 12.1-32-02(4), in any subsequent prosecution for any other offence, the prior conviction for which imposition of sentence was deferred may be pleaded and proved, and has the same effect as if probation had not been granted or the information or indictment dismissed.
- IT DOES NOT LIFT THE FIREARM DISABILITY. Under N.D.C.C. Sec. 62.1-02-01(2) the deferred disposition still counts as a conviction for firearm-disability purposes.
- IT DOES NOT END A REGISTRATION CONSEQUENCE. A registration consequence under N.D.C.C. Sec. 12.1-32-15 survives dismissal.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

Stop, and take this packet to a lawyer or a legal-aid office, if any of these is true:
- your deferred status is unclear from the record;
- there is no final order and no explanation from the clerk of court;
- a registration consequence survives dismissal in your case;
- a firearm consequence matters to you - the disability survives dismissal;
- a petition for revocation was filed, or a bench warrant is outstanding;
- you expected the deferred disposition to be invisible in a later prosecution, which N.D.C.C. Sec. 12.1-32-02(4) forecloses.

WHAT THIS PACKET IS NOT

This is a verification walkthrough, a fallback motion and this explanation. It is not legal advice, it is not filed for you, and it does not decide whether the automatic term operated in your case - the clerk's file decides that.